

22STCV14401 22STCV14401

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Case Number: 22STCV14401 Hearing Date: September 16, 2026 Dept: 732

Hamada Abdulla v. Askar Ranjbar, et al.

Wednesday, September 16, 2026

CASE NUMBER: 22STCV14401

OPPOSED

Cross-Defendant

Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Claims of
Cross-Complainants Askar Ranjbar, Mohamed Jafar, and Mohammad Ranjbar

Facts:

This is an action for breach of contract and fraud. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Hamada Abdulla ("Plaintiff") entered into an agreement with Defendant Askar Ranjbar to purchase from him the business known as All United Auto Wrecking, Inc. (FAC ¶¶ 2, 7–9.) Askar Ranjbar has repudiated the agreement and, with Defendants Mohammad Ranjbar and Mohamed Jafar, stolen various goods from premises belonging to Plaintiff. (FAC ¶¶ 13–22.)

Defendants'

Cross-Complaint ("XC") alleges as follows. Instead of Defendants agreeing to sell their business to Plaintiff, it was Plaintiff who agreed to sell their premises and lease to Defendants. (XC ¶¶ 13–19.) But Plaintiff refused to

vacate the premises, forged documents

indicating that Defendant had sold their business to Plaintiff, and entered Defendants' premises by deception in order to attempt to sell Defendants' inventory. (XC ¶¶ 20–32.) The landlord of the property, Cross-Defendant Aleksan Gezalian, has breached the lease by failing to afford Defendants quiet enjoyment of the property. (XC ¶¶ 38–43.)

Procedural History: Plaintiff

filed the original Complaint on May 2, 2022, and filed the FAC September 21, 2022, alleging four causes of action:

1.

Breach of Contract

2.

Conversion

3.

Fraud

4.

Declaratory Relief

Defendants

filed a Cross-Complaint on November 14, 2022, alleging ten causes of action:

1.

Breach of Contract

2.

Breach of Covenant of Fair Dealing

3.

Conversion

4.

Trespass

5.

Aiding and Abetting

6.

False Promise

7.

Intentional Misrepresentation

8.

Negligent Misrepresentation

9.

Promissory Estoppel

10. Unjust

Enrichment

On March 22, 2023, this court granted Doron F. Eghbali's motions to be relieved as counsel for Defendants and Cross-Complainants Askar Ranjbar, Mohamed Jafar, Mohammad Ranjbar.

On September 2 and 9, 2026, Askar Ranjbar in pro per filed successive cross-complaints, without leave of court.

Cross-Defendant Aleksan Gezalian filed the present motion to quash service of summons and to dismiss action on October 13, 2025.

No opposition was filed by the July 15, 2026 hearing date.

On that date, this court continued the present hearing to require submission of a proof of service with the motion. Said proof of service was filed on July 29, 2026, indicating service on the same date.

Cross-Complainants filed an opposition on August 24, 2026.

Cross-Defendant Gezalian filed a reply on September 2, 2026.

Analysis

I.

MOTION TO

QUASH SERVICE OF SUMMONS OR DISMISS CASE

Code of Civil Procedure section 418.10, subd. (a)(1) states: “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes . . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.) Mere notice of litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons. (MJS Enterprises, Inc. v. Superior Court (1984) 153 Cal.App.3d 555, 557.)

“The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc. § 583.410, subd. (a).) Dismissal may be granted upon the following applicable conditions:

(1) Service

is not made within two years after the action is commenced against the defendant.

The action is not brought to trial within the following times:

(A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

(Code Civ. Proc. § 583.420, subd. (a)(1), (2).) The California Rules of Court (“CRC”) permit discretionary dismissal under this latter subdivision “if the action has not

been brought to trial or conditionally settled within two years after the action was commenced against the defendant.” (CRC Rule 3.1340, subd. 9a.) The rules prescribe consideration of the following non-exclusive factors:

- (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;
- (2) The diligence in seeking to effect service of process;
- (3) The extent to which the parties engaged in any settlement negotiations or discussions;
- (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;
- (5) The nature and complexity of the case;
- (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;
- (7) The nature of any extensions of time or other delay attributable to either party;
- (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;
- (9) Whether the interests of justice are best served by dismissal or trial of the case; and
- (10) Any other fact or circumstance relevant to a fair determination of the issue.

The court must be guided by the policies set forth in Code of Civil Procedure section 583.130.[1]

(CRC Rule 3.1342, subd.
(e).)

The above statutes describe the standard for discretionary dismissal of an action for failure to prosecute or serve summons within a reasonable time. But service of summons is required within three years of the filing of a complaint or cross-complaint (Code Civ. Proc. §§ 583.110, subd. (b), 583.210), and failing to serve the summons and complaint within this time renders dismissal mandatory, not discretionary. (Code Civ. Proc. § 583.250, subd. (a).)

Cross-Defendant Aleksan

Gezalian (“Gezalian”) moves to quash service of summons upon him of the Cross-Complaint of Defendants Askar Ranjbar, Mohamed Jafar, and Mohammad Ranjbar, on the grounds that no service of the operative cross-complaint, filed on November 14, 2022, has been made. Gezalian argues that the only service that has occurred was of a cross-complaint later filed without leave on September 2 or September 9, 2026, which were filed by Askar Ranjbar in pro per, without indications of serialization. (Motion at pp. 3–6.) Gezalian alternately moves to dismiss the Cross-Complaint against him because service was not effectuated until more than two years after the Cross-Complaint was filed. (Motion at pp. 6–7.)

The court previously

continued hearing on the present motion to permit the filing of a proof of service, and in that time, Defendants have filed an opposition, acknowledging that the cross-complaints filed in September 2025 were filed without leave of court, and that the service accomplished upon Gezalian around the same time was defective because no summons accompanied the cross-complaint, which was in any event not the operative cross-complaint in this action. (Opposition at pp. 2–3.) But Defendants nonetheless request that, if service is to be quashed, that they be given an order clarifying the operative pleading and outlining a timetable in which service is to be accomplished, in consideration of their status as self-represented parties. (Opposition at pp. 3–4.)

Defendants acknowledge

that an order quashing service of summons is required. Service of summons upon a defendant is mandatory in the absence of a general appearance (Code Civ. Proc. § 410.50, subd. (a)), and the filing of the present motion to quash or

dismiss does not constitute a general appearance by Gezalian. (See Code Civ. Proc. § 583.220, subd. (b).) Thus at present, there has been no service of summons, and the attempted service indicated in Defendants' September 12, 2025 proof of service of summons is properly ordered quashed.

What remains in dispute

is whether Defendants' cross-claims against Gezalian ought to be dismissed, under either the discretionary provisions for failure to serve summons within two years, or mandatory provisions for failure to serve summons within three years.

Dismissal here is

mandatory under Code of Civil Procedure § 583.230 for failure to serve Gezalian within three years of the filing of the cross-complaint. Defendants' cross-complaint was filed on November 14, 2022, and service of summons was therefore required by November 14, 2025. It is undisputed that no such service has been made.

Defendants in opposition

note only that the statutory computation of time excludes periods when "[t]he validity of service was the subject of litigation by the parties," and thus argue that the running of the three-year period has been tolled since the filing of this motion on October 13, 2025, about a month before the three-year deadline otherwise would have run. (Opposition at p. 4.)

This statute does not

benefit Defendants, however, because the validity of service has not been the subject of litigation — i.e. a matter of dispute between the parties.

Defendants acknowledge in their opposition that their September 2025 cross-complaints were invalid as being filed without leave of court, and that no valid service of any cross-complaint ever occurred. The invalidity of their service is thus undisputed, and has not been the subject of litigation. What is disputed is only the propriety of dismissal, which is now mandatory under Code of Civil Procedure § 583.230.

Accordingly, the motion

to quash is GRANTED, and the motion to dismiss is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

HAMADA
ABDULLA.,

Plaintiff

v.

ASKAR RANJBAR, et al.,

Defendants.

AND RELATED CROSS-ACTIONS

Case No.:
22STCV14401

Hearing Date: September 16, 2026

[TENTATIVE] RULING RE:

Cross-Defendant

Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Claims of
Cross-Complainants Askar Ranjbar, Mohamed Jafar, and Mohammad Ranjbar

Cross-Defendant

Aleksan Gezalian's Motion to Quash Service of Summons or Dismiss Claims of
Cross-Complainants Askar Ranjbar, Mohamed Jafar, and Mohammad Ranjbar is
GRANTED.

Cross-Defendant to give notice.

Dated: September 16, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court

[1]

“It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.” (Code Civ. Proc. § 583.130.)